

JUSTIFICATION FOR OTHER THAN FULL & OPEN COMPETITION

AUTHORITY: FAR 6.302, 41 U.S.C. 253(c)

Requirement Title / Name: Flathead Indian Irrigation Project (FIIP) Dozer Rental for Snow Removal**Purchase Request Number:** 44011605**Originating Office (Customer):** Dominick Belcourt, FIIP**Division / Unit / Branch:** Flathead Indian Irrigation Project (FIIP)**1. This is a justification for other than full and open competition.**

Agency: Indian Affairs
IA Acquisition Office: A12 Northwest Region

2. Nature and/or description of the action being approved:

Requirement: Modification to existing order
Pricing: Firm-Fixed Price
Proposed Contractor/Vendor:
Name: Western States Equipment Company
Street Address: 500 E Overland Rd
City, State, Zip: Meridian, ID 83642-6606
Phone: 406-541-6300

3. A description of the supplies or services required to meet the agency's needs (including the estimated value):

The Flathead Indian Irrigation Project (FIIP) has a requirement to rent a dozer for snow removal. If this equipment is not procured soon, they are at risk of no supply water to the 127,000 acres served by the FIIP. Failure to provide the required irrigation would cause crop failure and could cause the government to be open to tort claims for the value of the lost crops.

IGE: [REDACTED]**4. An Identification of the statutory authority permitting other than full and open competition:**

- ☐ FAR 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. 41 U.S.C. 3304(a)(1)
- ☒ FAR 6.302-2 -- Unusual and Compelling Urgency. 41 U.S.C. 3304(a)(2)
- ☐ FAR 6.302-3 -- Industrial Mobilization; Engineering, Developmental, or Research Capability; or Expert Services. 41 U.S.C. 3304(a)(3)

- ☐ FAR 6.302-4 -- International Agreement. 41 U.S.C. 3304(a)(4)
- ☐ FAR 6.302-5 -- Authorized or Required by Statute. 41 U.S.C. 3304(a)(5)
- ☐ FAR 6.302-6 -- National Security. 41 U.S.C. 3304(a)(6)
- ☐ FAR 6.302-7 -- Public Interest. 41 U.S.C. 3304(a)(7)

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The nature of the requirement has been deemed urgent and following competitive procedures would result in unacceptable delays. The urgency in this situation is due to the fact that water season is arriving (April 15 to September 15). If the Flathead Indian Irrigation Project (FIIP) does not have access to the water diversion points in a timely manner, then it will impact the amount of water FIIP can divert for the current 2025 irrigation season. FIIP is already on the verge of missing early runoff. The main justification behind plowing snow to the diversion points is to give the Irrigation Systems Operators (ISO's) safe access to the roads and to the diversion points with their government vehicles. ISO's need to access these diversion points daily to operate the headworks and control the amounts of water diverted into the feeder canals. This will impact our obligation to the water users and to follow incremental instream flows and biological flushing flows. The direct impact from the water project will be a loss of water that will shorten our irrigation season and negatively impact AG producers and water users. If ISO's cannot access water diversion points frequently and in a safe manner it could contribute to the mismanagement of a tribal resource that benefits several tribal and non-tribal communities on the Flathead Indian Reservation. Failure to provide the required irrigation would cause crop failure and could cause the government to be open to tort claims for the value of the lost crops. If this rental equipment is not procured soon, there is a high risk of no water supply to the 127,000-acres served by the Flathead Indian Irrigation Project (FIIP).

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

Due to the emergency nature of this action, limited market research was conducted. Additionally, there are no further barriers to competition for dozer rental requirements other than the urgency in this circumstance and the remote location. Future requirements of this nature will continue to be publicized and competed. The exception at FAR 5.202(a)(2) applies.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination is based on the following:

IAW FAR 13.106-3(a)(2)(ii):

- Comparison of the proposed price with prices found reasonable on previous

purchases: The customer rents a dozer every year for snow removal and has paid around the same cost for this rental every year. The company has their prices posted on their website of what it charges to anyone who rents their equipment.

8. A description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.

Due to the emergency nature of this action, limited market research was conducted. Western States Equipment Company is one of the few companies that rents this type of equipment in the St. Ignatius, Montana Region and is registered in SAM.gov. FIIP rents this equipment every year from them as they are usually the lowest priced quote every year. Normally FIIP uses their purchase card to pay for this rental. Since almost all purchase cards have been turned off in the Department of Interior the only other way for this rental to be paid is for the Northwest Regional Contracting Office to issue an Authorization to Proceed and a commercial contract.

Additionally, there are no further barriers to competition for dozer rental requirements other than the urgency in this circumstance. Future requirements of this nature will continue to be publicized and competed. The exception at FAR 5.202 (a)(2) applies.

9. Any other facts supporting the use of justification of other than full and open competition, such as:

Western States Equipment Company is one of the few companies that rents this type of equipment in the St. Ignatius, Montana Region and is registered in SAM.gov.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

None.

11. A statement of any actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

There are no further barriers to competition for dozer rental requirements other than the urgency in this circumstance. Future requirements of this nature will continue to be publicized and competed.

Originating Office Attestation:

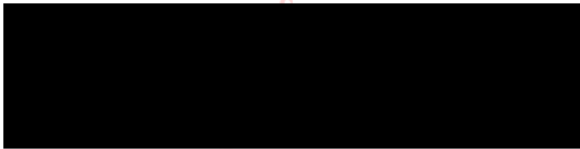
I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.



Dominick Belcourt
Supervisory Irrigation Maintenance Specialist
Flathead Indian Irrigation Project

12. Contracting Officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.



Brian Roberts
Contracting Officer
Bureau of Indian Affairs